

Deacons (Ordination of Women) Measure 1986

1986 No. 4

A MEASURE passed by the General Synod of the Church of England to make provision for the ordination of women as deacons, and for connected purposes.
[7th November 1986]

1.—(1) It shall be lawful for the General Synod to make Provision for provision by Canon for enabling a woman to be ordained to the ordination of office of deacon if she otherwise satisfies the requirements of women as Canon Law as to the persons who may be ordained as deacons. deacons.

(2) In the case of a deaconess who is licensed or holds a bishop's permission to officiate, a Canon made in pursuance of subsection (1) above may make provision for enabling the deaconess to be ordained to the office of deacon notwithstanding—

- (a) that she has not after applying to be so ordained been further examined concerning her knowledge of holy scripture or of the doctrine, discipline and worship of the Church of England, or**
- (b) that she has not exhibited to the bishop of the diocese any certificate or other document which is required to be so exhibited by every person who is to be made a deacon.**

(3) In section 1(1) of the Clergy (Ordination and Miscellaneous Provisions) Measure 1964 there shall be inserted at the beginning the words "Subject to the provisions of section 1(2) of the Deacons (Ordination of Women) Measure 1986".

(4) Nothing in this Measure shall make it lawful for a woman to be ordained to the office of priest.

Provisions as to the order of deaconesses.

2.—(1) It shall be lawful for the General Synod to provide by Canon that no woman shall be admitted to the order of deaconesses unless before the date on which this Measure comes into force she has been accepted for training for admission to that order.

(2) Nothing in this Measure shall affect the rights of a deaconess who does not become a deacon.

Provisions as to pensions etc.

1961 No. 3.

3.—(1) Subject to subsection (2) below, the provisions of Parts I, III and IV of the Clergy Pensions Measure 1961 (in this section referred to as “the 1961 Measure”) shall, so far as material, apply in relation to a woman who becomes a clerk in Holy Orders within the meaning of that Measure by virtue of being ordained to the office of deacon, and in relation to the husband or widower of any such woman, as they apply in relation to a male clerk in Holy Orders and the wife or widow of any such clerk.

(2) For the purposes of section 46 of the 1961 Measure the retiring age of a woman shall be the age of sixty years or such other age as the General Synod may by resolution from time to time determine.

(3) In consequence of the foregoing provisions of this section the 1961 Measure shall have effect subject to the amendments specified in the Schedule to this Measure.

Interpretation.

4. In any Canon, order, rule or regulation relating to deacons, words importing the masculine gender include the feminine, unless the contrary intention appears.

Short title, commencement and extent.

5.—(1) This Measure may be cited as the *Deacons (Ordination of Women) Measure 1986*.

(2) This Measure shall come into force on such day as the Archbishops of Canterbury and York may jointly appoint.

(3) This Measure shall extend to the provinces of Canterbury and York except that it shall only extend to the Isle of Man and the Channel Islands in accordance with the following provisions of this section.

(4) Sections 1, 2, 4 and 5 shall extend to the Isle of Man and section 3 may by or under Act of Tynwald be extended to the Isle of Man with such exceptions, adaptations and modifications as may be specified in such Act or instrument thereunder.

(5) This Measure may be applied to the Channel Islands as defined in the Channel Islands (Church Legislation) Measures 1931 and 1957, or either of them, in accordance with those Measures.

SCHEDULE

AMENDMENTS OF CLERGY PENSIONS MEASURE 1961

1961 No. 3.

1. In section 2(3) for the words "his wife", in both places where those words occur, there shall be substituted the words "his spouse".

2. In section 19 for paragraph (b) there shall be substituted the following paragraph—

"(b) for the provision of homes of residence for retired clerks and their spouses, and for the widows, widowers and dependants of deceased clerks, in accordance with the provisions of section twenty-six of this Measure ;".

3. In section 26—

(a) in subsection (1)(a) for the words "wives and for the widows" there shall be substituted the words "spouses and for the widows, widowers" ;

(b) in subsection (3A)—

(i) for paragraph (a) there shall be substituted the following paragraph—

"(a) a retired clerk or retired church worker or the spouse of a retired clerk or retired church worker ;" ;

(ii) in paragraph (b) for the words "wife of such clerk or the spouse of such church worker" there shall be substituted the words "spouse of such clerk or such church worker" ;

(iii) for paragraph (c) there shall be substituted the following paragraph—

(c) the widow or widower of a deceased clerk or deceased church worker ;" ;

(iv) in the definition of "the retiring age" for the words "a clerk" there shall be substituted the words "a male clerk" and for the words "female church worker" there shall be substituted the words "female clerk or female church worker" ;

4. In section 46 for the definition of "retiring age" there shall be substituted the following definition—

"'retiring age' means in the case of a man the age of 65 years or such earlier age as the General Synod may by resolution from time to time determine and in the case of a woman the age of 60 years or such other age as the General Synod may so determine ;".